



File No.: EXP202301033 (PS/00224/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 25/01/23, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against B.B.B., with NIF: ***NIF.1, owner of the website: www.cementeriodemarmotas.com (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The grounds for the complaint were that this website does not comply with the current legal regulations regarding: privacy, cookies, or legal notice.

SECOND: On 30/01/23, the Director of the Spanish Agency for Data Protection issued an admission agreement for the processing of the complaint filed, in accordance with Article 65 of the LPDGDD.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of the GDPR and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following:

- From the request made on 21/03/23 to the entity Arsys Internet S.L., a response was received from this entity indicating that the registration of the website was done through the entity TESYS INTERNET, S.L.U.

- From the request made on 29/03/23 to the entity TESYS INTERNET, S.L.U., a response was obtained on 01/04/23, indicating that the responsible party for the website www.cementeriodemarmotas.com is B.B.B.; NIF: ***NIF.1; Address: ***DIRECCION.1.

FOURTH: On 24/04/23, this Agency accessed the website www.cementeriodemarmotas.com, documenting the following characteristics regarding its "Privacy Policy" and its "Cookies Policy":

a).- Regarding the processing of personal data:

It was verified that on the website in question, personal data such as name, email address, or subject could be obtained through the "contact" link.

b).- Regarding the "Privacy Policy":

It was verified that at the bottom of the homepage of the website in question, there was a link to the "Privacy Policy." However, this link was inactive, making access to the information impossible.

The only information provided regarding the management of personal data was through the link existing in the cookie information banner located on the main page, where the information regarding data protection referred to Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD), and to RD 1720/2007, of December 21, which approved the Regulation of the LOPD.

Regulations that were repealed at the time of access to the website.

c).- Regarding the Cookies Policy:

1.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it was verified that the website in question used cookies that were not technical or necessary:

a.- Performance cookies: "_gid"; "_ga" and "1XZJN7SWGNa_ga".

b.- Targeting cookies: "_gat_gtag_UA_59353212_5".

2.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, a cookie information banner appeared at the bottom of the main page, with the message: "On this website, we use cookies... All for you to enjoy to the fullest –" noting that the purposes for which the cookies would be used were not identified and whether they were first-party or third-party

cookies.

3.- Regarding the possibility of managing the cookies used on the website:

It was noted that there was no possibility to reject cookies that were not technical or necessary or to manage them granularly through a control panel, as this did not exist on the website.

4.- Regarding access to the "Cookies Policy":

It was noted that there was no information on the website regarding the cookies policy, as the link existing at the bottom of the main page <> was inactive.

FIFTH: On 23/06/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning procedure EXP202301033 (PS/00224/2023) against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of the provisions of Article 13 of the GDPR, classified in the

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Article 83.5.b) of the aforementioned regulation, regarding the deficiencies observed in the "Privacy Policy" on your website, with an initial fine of 2,000 euros and for the alleged infringement of Article 22.2 of the LSSI, classified in Article 38.4.g) of the aforementioned regulation, regarding the deficiencies detected in your "Cookies Policy," with an initial fine of 2,000 euros.

Furthermore, it was also indicated that, if the infringement of Article 13 of the GDPR is confirmed, measures could be imposed on the website's responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR.

SIXTH: On 12/09/23, this Agency received a written statement of allegations regarding the initiation of the file, in which the following points were referenced:

- The complainant is a photographer who operates on social media, with advertising and marketing campaigns, and around the year 2019, I made a social critique, which must have caused some personal animosity.
- The domain subject to the complaint (www.cementeriodemarmotas.com) was under construction or final testing and contained several errors that, upon being noted by the initiation agreement, have been corrected.
- The most evident proof of the aforementioned is that the form described in the initiation agreement never functioned and no data was ever collected from anyone.
- The existing defects in the footer links regarding data protection and cookies policies have been rectified.

In addition, the responding party requested that a trial period be opened to conduct testimony from the complainant regarding the veracity of the facts presented and, if applicable, an expert examination of the content of the referred domain.

SEVENTH: On 13/09/23, this Agency accessed the website www.cementeriodemarmotas.com again, documenting the following characteristics regarding its "Privacy Policy" and its "Cookies Policy":

a) Regarding the processing of personal data, it is observed that the website can obtain personal data (name and email address) from users through the existing form in the "comments" option, which is included in the published news.

b) Regarding the use of cookies, it is observed that, before clicking on any of the options "accept," "deny," or "view preferences" in the cookie information banner on the main page, the website does not install any type of cookies.

If the option to reject all cookies is chosen by clicking on "Deny," the website continues to not use any type of cookies.

If the option to access the cookie control panel is chosen by clicking on "View preferences," it is observed that the different groups of cookies are pre-checked in.

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the "OFF" option. If one wishes not to use any type of cookies, by selecting the <> or <> option without having moved the cursor to the "ON" position in this control panel, it is observed that the website continues not to use cookies.

c).- It is observed that the information banner present on the main page provides information about the purposes for which cookies will be used.

d).- Regarding the "Cookie Policy," it is observed that there is a permanent link at the bottom of the main page that redirects the user to a new page

<https://cementeriodemarmotas.com/politica-de-cookies/>, where it informs what cookies are and what they are used for; what types of cookies may be used; what types of cookies are currently used on the website and how cookies can be managed.

EIGHTH: On 14/09/23, a resolution proposal was made suggesting that the Director of the AEPD sanction the respondent, responsible for the website <https://cementeriodemarmotas.com>, for violating the provisions of Article 13 of the GDPR with a fine of 2,000 euros (two thousand euros), classified under Article 83.5.b) of the aforementioned regulation, for the time it maintained deficiencies in the "Privacy Policy" of the website, and for violating the provisions of Article 22.2 of the LSSI, classified under Article 38.4.g) of the aforementioned regulation, with a fine of 2,000 euros (two thousand euros), for the time it maintained deficiencies in the "Cookie Policy" of the website.

NINTH: On 10/11/23, the respondent submitted a written statement of allegations to the resolution proposal in which, among other issues, it states the following:

The complainant does not provide evidence that their data has supposedly been stored on the website cementeriodemarmotas.com.

The domain www.cementeriodemarmotas.com was under construction or final testing and contained numerous errors that, upon being noted by the initiation agreement itself, have been corrected to demonstrate good faith and absence of culpability.

Currently, and after correcting an update error on the website, none of the violations mentioned exist. The most evident proof of the aforementioned is that the form described in the initiation agreement never worked and no data was ever collected from anyone, and therefore no public communication could be made as there were no operational data.

The form is currently also not available from the website, and a screenshot is provided showing that the form always presented errors in data collection. "The comments form never collected any email, as in the website configuration one can comment without needing to provide data in the form, and prior to the reforms that corrected what was mentioned in the previous communication, the website did not collect any email.

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Evidence is provided in the annexes to this letter where the complete table of comments stored by the system is included. The footer links regarding data protection and cookie policies have been corrected and are currently fully functional and accessible. Additionally, they have been added to the header menu under "More/..." so that potential future users have better accessibility to them.

As a result of correcting the noted design errors, it is now possible to configure, reject, or accept cookies with the user's personalized settings and management. Information about cookies is available in the footer and in the cookie banner.

With the allegations presented here, it is requested that the file be reviewed again to verify that the requirements of the regulations for the continuation of the sanctioning file are not met.

SECOND.- LEGAL GROUNDS Principles of the sanctioning power of the Administration. To substantiate what has been stated in the previous facts, the following is formulated:

PROPOSITION OF EVIDENCE

1st The AEPD proceeds to request from the complainant, through TESTIMONY, the veracity of the facts presented.

2nd The Administration proceeds to verify the veracity of the correction of the rights indicated in this document and, if applicable, to conduct an EXPERT assessment on the content of the referred domain with the evidence provided and in the annexes of the letter.

In virtue of the above, I REQUEST MR. INSTRUCTOR to consider this document submitted in due time and form, along with the accompanying documents, and to take into account the allegations contained herein, both these and those, and following the appropriate legal procedures, to issue a resolution proposal to ORDER THE ARCHIVING OF THIS SANCTIONING FILE for no infringement having been committed, as no data was ever collected.

ANOTHER I SAY that, in any case, and exercising the right of this party to avail itself of any means of evidence admitted in law, in accordance with Article 77 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, I REQUEST MR. INSTRUCTOR to AGREE TO OPEN A PROOF PERIOD so that the means of evidence proposed by this party in the body of this document may be practiced, as well as any others that he deems necessary ex officio and that are pertinent for a correct resolution of the sanctioning procedure that respects the principles of defense and presumption of innocence that inspire the sanctioning administrative law.

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TENTH: On 20/11/23, this Agency accessed the website

www.cementeriodemarmotas.com

again, completing the following characteristics regarding its “Privacy Policy” and its “Cookies Policy”:

a).- Regarding the processing of personal data, it is noted that currently, the website can obtain personal data (name and email address) from users through the existing form in the link, <>, which appears in the news,

<https://cementeriodemarmotas.com/aplicaciones-para-uso-paranormal/#respond>

b).- Regarding the information provided in the “Privacy Policy,” it is verified that access to it can be made through the link available in the information banner that appears when entering the main page for the first time or through the link available at the bottom of the website, where the website redirects the user to a new page <https://cementeriodemarmotas.com/politica-de-privacidad/> where information is provided about the identity of the person responsible for the website; for what purposes the obtained data will be used and who will know this information; how personal data will be protected; how long the data will be retained; what rights users have regarding data protection and how to exercise them, and how to withdraw the consent provided by the user.

c).- Regarding the use of cookies, it is observed that, before clicking on any of the options “accept,” “deny,” or “view preferences” in the cookie information banner on the main page, the website installs two own cookies whose purpose could not be identified: “cmmplz_policy_id” and “aiovg_rand_seed,” and if the option to reject all cookies is chosen by clicking on the <> option, the website continues to use the indicated cookies.

If the option to access the cookie control panel is chosen by clicking on the <> option, a control panel is displayed, in which it is observed that the different groups of cookies are pre-checked in the “OFF” option. If it is desired not to use any type of cookies, by using the <> or <> option without having moved the cursor to the “ON” position in this control panel, it is observed that the website continues to use the cookies detected at the beginning.

c).- It is observed that the information banner existing on the main page provides information about the purposes for which cookies will be used.

d).- Regarding the “Cookies Policy,” it is observed that there is a permanent link at the bottom of the main page that redirects the user to the page <https://cementeriodemarmotas.com/politica-de-cookies/>, where it is informed what cookies are and what they are used for; what types of cookies may be used; what types of cookies are currently used on the website and how cookies can be managed through the

browsers installed on the terminal equipment.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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First: The complaint submitted to this Agency, dated 01/25/23, was based on the fact that the website www.cementeriodemarmotas.com did not comply with the current legal regulations regarding privacy, cookies, and legal notice. Therefore, on 04/24/23, this Agency verified that the website in question had the following characteristics in its "Privacy Policy" and "Cookie Policy":

a).- It was verified that the website could obtain personal data from users through the existing contact form. It was also noted that at the bottom of the webpage there was a link to the website's "Privacy Policy," but it was inactive. The only information provided regarding the management of personal data obtained from users was through the link present in the cookie information banner located on the main page, (<>), through which the website redirected the user to a new page where information regarding the protection of personal data was referenced to the repealed Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD).

b).- Regarding the "Cookie Policy," it was observed that when entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the webpage, cookies that were not technical or necessary were used without the prior consent of the user: three performance cookies (_gid; _ga_1XZJN7SWG and _ga) and one orientation cookie (_gat_gtag_UA_59353212_5).

c).- Regarding the cookie information banner on the first layer, it was observed that it only indicated the following: "On this website, we use cookies... All for you to enjoy to the fullest" without referencing the purposes for which the cookies would be used. It was verified that at the bottom of the webpage there was a link to the website's "Cookie Policy," but it was inactive. The only information provided about cookies was through the link present in the information banner <>, which informed about what cookies are and the purpose of the cookies used on the website.

d).- It was observed that there was no possibility to reject cookies that were not technical or necessary or to manage them granularly through a control panel.

Second: Following the receipt of the written allegations regarding the initiation of the file, dated 09/13/23, this Agency verified the following characteristics regarding the "Privacy Policy" and "Cookie Policy" of the website in question:

a).- It was observed that the website could obtain personal data (name and email) from users through the form, <>, present in the news published on the site.

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b).- It was observed that before clicking on any of the options "accept," "deny," or "view preferences" on the cookie information banner on the main page, the website did not install any type of cookies. If the option to reject all cookies was selected by clicking on "Deny," the website continued to not use cookies. If the cookie control panel was accessed, it was observed that the different groups of cookies were pre-checked in the "OFF" option. Furthermore, if the intention was to not use any type of cookies, by using the "deny" option or "save preferences" without moving any of the sliders to the "ON" position, the website continued to not use cookies.

c).- The cookie information banner present on the main page provided information about the purposes for which cookies are used.

d).- Through the link to the "Privacy Policy," located at the bottom of the main page, information was

provided about the identity of the website's responsible party; for what purposes the obtained personal data will be used; why they need to use the data; who will know the information; how they will protect the data; whether they will send the data to other countries; how long they will retain the data; what the rights of data protection are; where to file a complaint or whether they create profiles.

e).- Through the link to the "Cookies Policy" available at the bottom of the website, users were informed about what cookies are and for what they are used; what types of cookies are used and how cookies can be managed.

Third: Following the receipt of the written allegations to the proposed resolution, dated 20/11/23, this Agency recorded the following characteristics regarding the "Privacy Policy" and the "Cookies Policy" of the website in question:

a).- Regarding the processing of personal data, it is noted that currently, the website can obtain personal data (name and email address) from users through the existing form in the link, "comments," which appears in the news published on the website.

b).- Regarding the information provided in the "Privacy Policy," it is verified that access to it can be made through the link available in the information banner that appears when entering the main page for the first time or through the link available at the bottom of the website, where the website redirects the user to a new page that provides information about the identity of the website's responsible party; for what purposes the obtained data will be used and who will know such information; how they will protect personal data; how long they will retain the data; what rights users have regarding data protection and how to exercise them, and how to withdraw the consent given by the user.

c).- Regarding the use of cookies, it is observed that, before clicking on any of the options "accept," "deny," or "view preferences" in the cookie information banner on the main page, the website installs two own cookies whose purpose could not be identified: "cmmplz_policy_id" and "aiovg_rand_seed." If the option is selected...

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reject all cookies by clicking on the option <>, the website continues to use the cookies mentioned above, and if one opts to accept cookies, it is verified that the website does not use new cookies.

If one chooses to access the cookie control panel by clicking on the option <>, a control panel is displayed, in which it is observed that the different groups of cookies are pre-marked in the "OFF" option. If one wishes not to use any type of cookies, by using the <> or <> option without having moved the cursor to the "ON" position in this control panel, it is observed that the website continues to use the detected cookies.

c).- It is observed that the information banner present on the main page provides information about the purposes for which the cookies will be used.

d).- Regarding the "Cookie Policy," it is noted that there is a permanent link at the bottom of the main page that redirects the user to a new page where it informs what cookies are and what they are used for; what types of cookies may be used; what types of cookies are currently used on the website and how cookies can be managed through the browsers installed on the terminal equipment.

LEGAL GROUNDS

I.

Competence:

Regarding the processing of personal data and the "Privacy Policy," the Director of the Spanish Agency for Data Protection is competent to resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR, and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD Law.

Regarding the "Cookie Policy," the Director of the Spanish Agency for Data Protection is competent to resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI Law.

II.

Response to the allegations presented by the defendant entity

In relation to the statements made by the defendant party, which basically reproduce the allegations presented by it during the processing of the sanctioning procedure, without adding any new argument, it should be noted that they have already been analyzed and dismissed in the Legal Ground II of the Resolution Proposal, dated 14/09/23. However, in relation to the statements made by the defendant party, a response is provided to them in the order presented:

a). The defendant refers to the fact that the complainant does not provide evidence that their data has supposedly been stored on the website in question. However, the objective of this file is not to determine whether data was obtained through the website.

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the personal data of the complainant or not, but the established possibility that the website can indeed obtain personal data from its users and therefore must comply with the provisions of the current regulations regarding the protection of personal data.

b).- The respondent refers to the fact that the domain www.cementeriodemarmotas.com was under construction or final testing and contained several errors that, upon being noted by the initiation agreement of the sanctioning file, have been corrected to demonstrate good faith and the absence of culpability. It should be noted that, although it has been confirmed in the verification carried out by this Agency on 09/13/23 and 11/20/23 that the person responsible for the website has modified the privacy policy and the cookie policy, this does not eliminate the proven non-compliance that was established when this Agency conducted the first verification of the website on 04/24/23, where non-compliance with the GDPR and the LSSI was detected.

c).- The respondent requests in point “second” of their written allegations to the proposed resolution that the complainant be required, through testimonial evidence, to verify the truthfulness of the facts presented and that the appropriate expert tests be conducted regarding the content of the referred domain with the evidence provided. In this regard, this Agency must reiterate what has already been stated in the Proposal for Resolution, where it was indicated that the information obtained from the website in question was sufficient to determine whether or not there was a violation of the current regulations on data protection, and this was demonstrated throughout the procedure. It should be noted that this sanctioning administrative procedure is initiated after the AEPD has carried out an intensive inspection work, which has been documented and incorporated into the file and constitutes sufficient evidence for this resolution.

Therefore, the opening of the evidentiary period requested by the respondent, to carry out testimonial evidence, is considered unnecessary in this case, applying the principle of “procedural economy,” as the imputable facts are already sufficiently accredited, and thus, the request for the practice of evidence should be rejected as unnecessary under the provisions of Article 77.3 of the LPACAP.

III.1

Regarding the processing of personal data on the website and the “Privacy Policy”

In the verification carried out by this Agency on 04/24/23, it was found that on the website www.cementeriodemarmotas.com there was a possibility of obtaining personal data through the link <> → <>, located at the top of the main page and at the bottom, but there was no access to the “Privacy Policy of the website,” as the link titled <> located at the bottom of the main page was inactive.

The only information provided regarding the management of personal data was through the link available in the cookie information banner located at C/ Jorge Juan, 6

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main page, <>, through which the website redirected the user to a new page

<https://cementeriodemarmotas.com/politica-de-privacidad-y-cookies/>

where information regarding the protection of personal data is provided, referencing the repealed Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD), and Royal Decree 1720/2007, of December 21, which approves the Development Regulation of the LOPD.

In this regard, it should be noted that, in the Sole Repealing Provision of the LOPDGDD, it is stated that:

1. Without prejudice to what is provided in the fourteenth additional provision and in the fourth transitional provision, the Organic Law 15/1999, of December 13, on the Protection of Personal Data is repealed.

It is established, in its sixteenth final provision, that: "This organic law will enter into force the day after its publication in the Official State Bulletin."

Since the publication of the LOPDGDD was on 06/12/18, its entry into force occurred on 07/12/18, thus repealing the Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD) from that date.

Therefore, in the case at hand, the lack of information in accordance with the current regulations regarding the processing of personal data when personal data was obtained from the users of the website and the impossibility of accessing the "Privacy Policy" during the time the link was non-operational, constitutes a violation of Article 13 of the GDPR.

III.2

Administrative infringement

It is undisputed in this case that the respondent is the owner and responsible party of the website www.cementeriodemarmotas.com and, therefore, the responsible party for the data processing obtained through it.

In relation to said website, it was found in this case, on one hand, the lack of information in accordance with the current regulations regarding the processing of personal data since the information available through the link in the information banner on the main page referred to the repealed LOPD and, on the other hand, the impossibility of accessing the "Privacy Policy" of the website since its link was inoperative.

It is considered that these facts violate what is established in Article 13 of the GDPR, thus constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: (...) b) the rights of the data subjects pursuant to Articles 12 to 22; (...)"

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For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...) h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.

III.-3

Sanction

Article 58.2 of the GDPR establishes:

“Each supervisory authority shall have all of the following corrective powers indicated below: (...) d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe; (...) i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine. With respect to the infringement of Article 13 of the GDPR, it is considered that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with what is established in Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states the following:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects; d) the degree of responsibility of the controller or processor;

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of the data processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32; e) any previous infringement committed by the data controller or the data processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or the data processor notified the infringement and, if so, to what extent; i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or the data processor in relation to the same matter, compliance with such measures; j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article. 2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: a) The continued nature of the infringement. b) The connection of the infringer's activity with the processing of personal data. c) The benefits obtained as a result of the commission of the infringement. d) The possibility that the conduct of the affected party may have induced the commission of the infringement. e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity. f) The impact on the rights of minors. g) Having, when not mandatory, a data protection officer. h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances considered, with respect to the infringements committed, allows for

the assessment of the fine at 2,000 euros (two thousand euros) for the infringement of Article 13 of the GDPR.

III.-4

Measures

In accordance with the provisions of Article 58.2.d) of the GDPR, each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

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In this case, considering the circumstances expressed regarding the defects observed in the operation of the website, from the perspective of data protection regulations, and its subsequent adaptation to the regulations, it is not deemed appropriate to agree on any measures.

IV.-1

On the Cookie Policy of the website

In the verification carried out by this Agency on 24/04/23, it was found that when entering the website www.cementeriodemarmotas.com for the first time, without accepting cookies or taking any action on the page, cookies that were not technical or necessary were being used: three performance cookies: `_gid`; `_ga_1XZJN7SWGN` and `_ga`, and one targeting cookie: `_gat_gtag_UA_59353212_5`.

It was also verified that it was not possible to reject cookies that were not technical or necessary or to manage their use granularly through a cookie control panel, as this did not exist.

It was also noted that the cookie information banner that appeared on the main page did not identify the purposes for which the detected cookies were used.

Additionally, it was verified that there was no link allowing the user to redirect to the “Cookie Policy” of the website, as the existing link on the main page was inactive.

Therefore, although it has been confirmed, in the checks conducted by this Agency on 13/09/23 and 20/11/23, that the website controller has modified the cookie policy, this does not eliminate the non-compliance that was established in the verification carried out on 24/04/23, constituting a violation of the provisions of Article 22.2 of the LSSI.

IV.-2

Administrative Infringement

From the deficiencies detected regarding the cookie policy on the website in question: the use of third-party cookies that were not technical or necessary; the impossibility of rejecting cookies and the impossibility of accessing information in the “cookie policy,” during the time the website was not adapted, constitute the commission of the infringement of Article 22.2 of the LSSI, as it establishes that:

“Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of the data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

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When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible technical storage or access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service explicitly requested by the recipient.

IV.-3

Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Therefore, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by the entity.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR and Article 22.2 of the LSSI, classified under Article 83.5 of the GDPR and Article 38.4.g) of the LSSI, respectively, a fine of:

a).- €2,000 (two thousand euros), for the infringement of Article 13 of the GDPR.

b).- €2,000 (two thousand euros), for the infringement of Article 22.2 of the LSSI.

SECOND: NOTIFY this resolution to B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other

registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal.

If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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